

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Applications Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 6, 2026
1:15 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-03171	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Application for Order Shortening Time for Hearing on Motion to Set Aside Default and Vacate Default Judgment

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 6, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-00083	Cavalry SPV I, LLC vs. Luis Fernandez
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Order to Show Cause Why the Action Should Not Be Dismissed for Failure to Bring to Trial Within 5 Years (CCP §§ 583.310, 583.360)

If there is no appearance by Plaintiff, the Court will dismiss the action pursuant to Code of Civil Procedure sections 583.310 and 583.360.

25CV-02958	Alexandra Guzman Torres vs. Ernest Munoz
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Order of Examination (Small Claims) – Ernest Munoz

The Court notes that no proof of service has been filed for the Order to Produce Statement of Assets and to Appear for Examination.
